

the judges by their construction of the statute created a novel kind of interest, since distinguished and now known by the name of *Trust*. Before the statute of Hen. 8. a person, to have had the complete ownership, must have united the *possession* of the land and the *use* of the profits. The possession and the use were even at common law recognised as distinct interests, though the *cestui que use* was left to Chancery for his remedy (a). On a feoffment to A. to the use of B. to the use of C., the possession was in A., the use in B., and the limitation over to C. was disregarded as surplusage. When the statute of Hen. 8. was passed, it executed the estate in B. by annexing the possession to the use; but having thus become *functus officio* it did not, as the Act was construed, affect the use over to C. However, Chancery, now that uses were converted into estates, decreed C. to have a title in equity, and enforced the execution of it under the name of a *trust* (b).

Land, use, and trust distinguished by Lord Hardwicke. — “Interests in land,” said Lord Hardwicke, “thus became of three kinds: first, the *estate in the land itself*, the ancient common-law fee; secondly, the *use*, which was originally a creature of equity, but since the statute of uses it drew the estate in the land to it, so that they were joined and made one legal estate; and thirdly, the *trust*, of which the common-law takes no notice, but which carries the beneficial interest and profits in a court of equity, and is still a creature of that court, as the use was before the statute” (c).

Trusts not within statutes relating to uses. — This newly created interest was held to be so perfectly distinct from the ancient use, that the statutory provisions by which many of the mischiefs of uses had been remedied, as the 19th Hen. 7. c. 15, by which uses had been made liable to writs of execution, and the 26th Hen. 8. c. 13, by * which [*8] they had become forfeitable to the Crown for treason, were decided to have no application. However, the *trust*

(a) Lit. s. 462, 463; Co. Lit. 272, b.; and see Carter, 197; Porey v. Juxon, Nels. 135; Megod's Case, Godb. 64.

(b) See Hopkins v. Hopkins, 1 Atk. 591.

(c) Willett v. Stanford, 1 Ves. 186; Coryton v. Helyar, 2 Cox, 342.